

Key Takeaways: What are Tiered Standards and How are States Using Them

The federal Centers for Medicare and Medicaid Services' (CMS) 2014 final regulations for the delivery of home and community-based services requires development of a Statewide Transition Plan (STP). In the STPs, states must outline how the delivery of services and the settings where they are delivered will be brought in to compliance.

As states determine pathways to achieve compliance with the 2014 regulations, questions have arisen on whether and how Medicaid waivers can be used to change the service system over time. CMS addressed this question in a 2015 Question and Answer document, clarifying that states could identify a "tiered standard" to bring their systems in to compliance.

A tiered standard is a fancy way of describing a purposeful and staged approach, over time. States have recognized that compliance in residential, employment and day supports can not be achieved quickly or with the flip of a switch. It must also be cost-neutral, allow for gradually phasing out aspects of the current system, and may include decisions on system characteristics that can be closed/ended completely.

At the point of including a reference to the use of tiered standards in the STP, states do not need to include details for implementation. Once states embark on the process of describing what steps will be taken across all HCB services, the details will describe the roadmap to compliance.

Maryland, Minnesota and Tennessee shared information about their approaches to managing their system changes. All three states have invested considerable time to engaging with a variety of stakeholders to assure:

- » Conversations and joint decisions are being made with a wide range of input
- » People outside the state IDD agency understand what changes are being considered
- » The state is explaining what services will phase out over time, will change names, continue in a different form or will be offered through different waiver authorities
- » A reasonable timeframe is established for all systems changes
- » Financing, rate methodologies and funding options are included in the analysis of service and programmatic changes
- » Data and performance management is valued as a key tool for creating, implementing and monitoring the changes over time.

For more information and updates:

CMS Home and Community-based Setting Requirements June 26, 2015:
www.medicaid.gov/medicaid/hcbs/downloads/home-and-community-based-setting-requirements.pdf

SELN Hub members can navigate to the [Monthly Network Meeting groups page](#) for additional materials and discussion.



The SELN is a place for states to connect, collaborate, and create cross-community support regarding pressing employment-related issues at state and federal levels for individuals with developmental disabilities.

The SELN was launched in 2006 as a joint program of the National Association of State Directors of Developmental Disabilities Services and the Institute for Community Inclusion at the University of Massachusetts Boston.

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